BEFORE THE PROCUREMENT REVIEW COMMITTEE

BALOCHISTAN PUBLIC PROCUREMENT REGULATORY AUTHORITY, QUETTA

Consolidated Decision in PRC Appeal No.51 & 52/2026

PRC APPEAL No.51 /2026

M/S SD Consultant & Research Lab,

Through its Authorized Representative Aziz Ahmed**,**

Address: At second Floor, Swiss Plaza, MA Jinnah Road, Quetta

.... **Appellant**

Versus

1. Secretary, Excise, Taxation and Anti-Narcotics Department, Government of Balochistan, Civil Secretariat, Quetta.
2. Additional Secretary, Excise, Taxation and Anti-Narcotics (Procuring Agency).
3. Chairman Grievance Redressal Committee.

.... Respondents

PRC APPEAL No.52/2026

M/s Bolan Services & Consultants SMC (PVT) Ltd

6-B, Shabaz Town, Phase-II, Quetta, Balochistan

....Appellant

Versus

1. Chairman Procurement Committee/ Secretary, Excise, Taxation and Anti-Narcotics Department, Government of Balochistan.
2. Procurement Officer/ Additional Secretary, Excise, Taxation and Anti-Narcotics (Procuring Agency), Government of Balochistan.
3. M/S SD Consultant & Research Lab.

....Respondents

Quorum

1.	Habib-Ur-Rehman Jamot	Chairman PRC
2.	Iftikhar Ahmed Sanjarani	Member PRC
3.	Engr. Junaid Shah	Member PRC
4.	Iftikhar Ahmed Mir	Technical Member PRC
5.	Syed Muheebullah	Private Member PRC

APPEAL UNDER RULE-56-A OF THE BALOCHISTAN PUBLIC PROCUREMENT RULES, 2014 FOR PROJECT TITLED AS "FEASIBILITY AND MECHANISM FOR REGULATORY UTILIZATION OF EPHEDRA AND POPPY CULTIVATION FOR MEDICAL AND POSITIVE PURPOSES", TSE No. 252612929192

For the Appellant: Aziz Ahmed (in Appeal No.51)
For the Appellant: Shahid Hussain Director Project (in Appeal No.52)
For Official Respondents: Ateeq Ahmed Deputy Director, Excise, Taxation & Narcotics

BRIEF FACTS

These two Appeals No.51/2026 and 52/2026 are consolidated and decided together in this single decision, as they arise from the same TSE.

1. The Additional Secretary, Excise, Taxation and Anti-Narcotics (Procuring Agency), invited bids vide TSE No. 252612929192 for the consultancy assignment titled "Feasibility and Mechanism for Regulatory Utilization of Ephedra and Poppy Cultivation for Medical and Positive Purposes". The estimated approved cost was PKR 30,000,000/-. The procurement was advertised in daily newspapers and uploaded on the BPPRA website on 28-12-2025. It was to be evaluated on a Least Cost Selection basis, package-wise, under the Single Stage – One Envelope bidding procedure. All participating bidders were required to submit their documents to the Procuring Agency.
2. The technical bids were opened on 29-01-2026. Three bidders participated in the above TSE and all the three bidders were declared technically qualified. The financial bids were opened on 02-03-2026. M/s SD Consultant & Research Lab was declared non-responsive due to submission of a Security Deposit Receipt (SDR) instead of a Call Deposit (or Deposit at Call), and M/s Bolan Services & Consultants SMC (PVT) Ltd was declared the lowest responsive bidder.
3. M/s SD Consultant & Research Lab challenged its non-responsiveness, asserting that the bid security in the shape of security deposit Receipt (SDR) was submitted in the name of the Excise, Taxation and Anti-Narcotics Department. Further contended that the Security Deposit Receipt (SDR) and Call Deposit serve the same purpose (securing the bid). The Appellant stated that he met the basic eligibility criteria and quoted the lowest rate during financial bid opening. The Appellant prayed that this Committee may

kindly set aside the impugned Financial Bid Evaluation Report dated 02-03-2026 (whereby the firm of the Appellant was unlawfully declared non-responsive), further prayed to declare the above TSE as mis-procurement and grant appropriate relief.

4. M/s Bolan Services & Consultants SMC (PVT) Ltd in Appeal No.52/2026 challenged the eligibility of M/s SD Consultant & Research Lab, alleging therein that the Private Respondent No.3 i.e. M/s SD Consultant & Research Lab was inactive in the Active Tax Payer List (with NTN No. 4359447) at the time of the technical opening of the above bid. The Appellant prayed that this Committee declare the bidder technically ineligible and take appropriate action against the firm under the BPPRA Rules, 2014.
5. Aggrieved by the disqualification, M/s SD Consultant & Research Lab filed a complaint with the Complaint Redressal Committee (CRC) on 05-03-2026. Separately, M/s Bolan Services & Consultants SMC (PVT) Ltd filed a complaint with the CRC on 27-02-2026, challenging the Active Tax Payer status of M/s SD Consultant & Research Lab. In response to both complaints, the CRC issued minutes of its meeting on 09-03-2026. The operative part of the said minutes relating to SD Consultant & Research Lab is as under:

"B. Based on the grievance submitted by SD Consultant & Research Lab against the decision of the procurement committee, the grievance committee has regretted the plea of SD Consult & Research Lab on the below grounds:

1. *The banking instrument submitted by the firm was not in accordance with the requirements, based on which, SD Consulting remained non-responsive. SD Consulting submitting Security Deposit Receipt instead of Call Deposit (CDR) which was the actual requirement for qualifying in financial evaluation.*
2. *The instrument was drawn in the name of "Excise, Taxation & Anti-Narcotics" instead of "Additional Secretary, Excise, Taxation & Anti-Narcotics", which was specifically mentioned in the bid security clause, "The bids must accompany Bid Security in the form of Deposit at Call of 2% specified above in the name of the under-signed (Additional Secretary, Excise, Taxation & Anti-Narcotics) from a scheduled bank" as mentioned in the NIT Report at Serial # 4.*
   In view of the above observations the CRC decides that the instrument submitted by the firm is not in conformity with the NIT requirement."

3. REPLY AND CONTENTIONS OF THE RESPONDENTS

The Representative of the official Respondents appeared before this Committee, extended overall submissions, and contested the appeal. Their submissions are summarized as follows:

i. That Technical Evaluation Committee conducted the evaluation strictly in accordance with the provisions of the bidding documents and the Balochistan Public Procurement Rules, 2014.

ii. That the technical evaluation was conducted on 29-01-2026, and the financial bids of responsive bidders were opened on 02-03-2026. The Appellant/ M/s SD Consultant & Research Lab was declared non-responsive on account of non-submission of Call Deposit which is mandatory in eligibility criteria as per Serial No.4 of the NIT.

iii. That the decision of the Technical Evaluation Committee was lawful, justified, reasonable, and duly supported by the documentary record available on file.

iv. That the Appellant/ M/s SD Consultant & Research Lab has not existed on active Tax Payer list.

v. That the appeal is without merit and liable to be dismissed.

4. POINTS FOR DETERMINATION

In light of the pleadings and submissions of the parties, the following point arise for determination:

i. Whether the Appellant (M/s SD Consultant & Research Lab) submitted the bid Security in the name of the Procuring Agency as per Clause 4 of NIT or Bidding Documents?

ii. Whether the Procuring Agency directed the bidders to submit Deposit at Call?

iii. Whether the deposit at Call and Security Deposit Receipt (SDR) serve the same purpose?

iv. Whether the Procuring Agency lawfully declared the Appellant's bid non-responsive?

v. Whether the Appellant (M/s SD Consultant & Research Lab) was included in the Active Taxpayers List at the time of bid opening?

vi. Whether the Procuring Agency unlawfully declared the M/s SD Consultant and Research Lab eligible?

5. FINDINGS OF THE COMMITTEE

After careful examination of the record, pleadings of the parties, and applicable provisions of the BPPRA Rules, 2014, this Committee records the following findings:

i. According to Rule 29 of BPP Rules 2014, the Procuring Agency may require bidders to furnish bid security of 2% (or up to 5% in complex cases) in the form of a bank guarantee or Deposit at Call from a scheduled bank. As per clause 4 of the Notice Inviting Tender (NIT), the Procuring Agency specified that the bid security should be submitted in the name of the "Additional Secretary Excise Taxation and Anti-Narcotics." However, the Appellant (M/s SD Consultant & Research Lab) submitted the bid security in the name of "Excise, Taxation and Anti-Narcotics". When confronted it transpired that the Procuring Agency in bidding documents mentioned that the bid security should be submitted in the name of "Excise, Taxation and Anti-Narcotics". There is a clear difference between instructions mentioned in the NIT and the bidding documents. According to Rule 35(1) the bidding documents, which form the core contractual basis for the procurement, take precedence for detailed instructions.

Rule35(1):

> *"All bids shall be evaluated in accordance with the evaluation criteria and other terms and conditions set forth in the bidding documents".*

The Appellant reasonably followed the bidding documents by submitting the security in the name of the procuring entity ("Excise Taxation and Anti-Narcotics"). Minor variations of name (i.e. including or excluding "Additional Secretary") do not invalidate the bid security if it is effectively in favor of the procuring entity. Therefore, the bid security submitted by the Appellant (M/s SD Consultant & Research Lab) is valid and correct as per the BPPRA Rules 2014. The Procuring Agency's conflicting instructions amount to misguidance, and rejecting the bid on this ground would be unjustified.

ii. For the above-mentioned tender (TSE), the Procuring Agency required the bidders to submit a Call Deposit (also known as Deposit at Call) as per the Balochistan Public Procurement Rules 2014 (Rule 29). However, the Appellant (M/s SD Consultant & Research Lab) submitted a Security Deposit Receipt (SDR) instead of deposit at Call.

However, the purpose of both the Deposit at Call and SDR are same, which was also confirmed by the respective bank but here is a clear distinction between the two:

- A Call Deposit or Deposit at Call, from a scheduled bank serves as bid security which is obtained at the time of bid opening with financial proposal. It ensures that the bidder shall not withdraw the bid or fail to proceed after bid opening. It is submitted at the time of bid submission, returned to unsuccessful or non-responsive bidders within specified timelines, and bid security of the successful bidder is retained till submission of performance guarantee.
- In contrast to Call Deposit, Security Deposit Receipt (SDR) protects the Procuring Agency against breach during contract execution. It is submitted only after award of the contract (not at bid submission) and the bid security is released once it is provided.

The Procuring Agency explicitly directed bidders to submit Deposit at Call, which aligns with the required bid security under Rule 29 and must be provided at the time of bid submission. By submitting a Security Deposit Receipt instead of Deposit at Call, the Appellant failed to comply with the specified form of bid security. This likely renders the bidder non-responsive under Rule 29, as the bid security must be in the prescribed form.

iii. After careful perusal of the record in PRC Appeal No.52/2026 filed by M/S Bolan Services & Consultants SMC (Pvt) Ltd the Respondent No.3 (M/s SD Consultant & Research Lab) was not included in the Active Taxpayers List (ATL) of the Federal Board of Revenue (FBR) at the time of bid opening and failed to submit the required certificate or proof of active taxpayer status on the date of bid opening.

This failure constitutes a violation of both the eligibility criteria specified in the bidding documents and the requirements under the Balochistan Public Procurement Rules 2014 (BPPRA Rules 2014). Specifically, Rule 41(1) mandates that the Notice Inviting Tenders (NIT) and bidding documents for open competitive bidding shall include, among the eligibility criteria, registration with Income Tax (along with Sales Tax where applicable) and other relevant factors while this very fact was ignored by the Procuring Agency and declared the Respondent No.3 namely M/S Sd Consultant & Research Lab technically responsive. During the course of arguments, the Representative of Respondent No.3 (M/s SD Consultant & Research Lab) conceded that the Firm was not included in the Active Taxpayers List (ATL) of the Federal Board of Revenue (FBR) at the time of bid opening. Furthermore, the representative of the official respondents also admitted that the firm of the Respondent no.3 was mistakenly declared eligible and they have started re-evaluation of the above and in this regard opinion from the BPPRA has also been sought.

iv. The Complaint Redressal Committee is found to be fully justified in allowing the Complaint of the Appellant namely M/S Bolan Services & Consultants SMC (Pvt) Ltd as non-fulfillment of a mandatory eligibility criterion (active Income Tax registration/status) disqualifies the bid from further consideration. However, CRC failed to give clear directions for reevaluation of the Respondent No.3.

v. Mere assertion or reference without submission of supporting documentary evidence is insufficient to establish compliance with mandatory eligibility requirements. The Appellant (M/s SD Consultant & Research Lab) failed to establish compliance with mandatory eligibility criteria and the Appeal of Appellant (M/s SD Consultant & Research Lab) is not maintainable.

The appeal of the Appellant (M/s Bolan Services & Consultants SMC (PVT) Ltd is partly admissible.

6. DECISION

In view of the foregoing findings and after careful consideration of the record and applicable law, this Committee concludes as follows:

i. The Appellant (M/s SD Consultant & Research Lab) in PRC Appeal No.51/2026 failed to prove its case as required under the mandatory eligibility criteria therefore, the PRC Appeal No.51/2026 titled as M/s SD Consultant & Research Lab Vs Secretary Excise, Taxation and Anti- narcotics is dismissed.

ii. The Appeal No.52/2026 titled as M/s Bolan Services & Consultants SMC (PVT) Ltd Vs Secretary Excise, Taxation and Anti- narcotics is partly allowed. The Procuring Agency is directed to re-evaluate the said TSE No.252612929192 to the extent of Respondent No.3 of Appeal No.52 (M/s SD Consultant & Research Lab (Pvt) Ltd) and to decide its eligibility or otherwise in view of his non-active Tax payer status.

The Registrar of PRC is directed to communicate this decision to the Appellants and all Respondents for necessary compliance.

Announced on this 30th day of March, 2026, under Rule 56-A of the Balochistan Public Procurement Rules, 2014.

Announced under the seal and authority of the Procurement Review Committee.

Habib Ur Rehman Jamot

Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)

30/03/2026.

30/03/2026

Iftikhar Ahmed Sanjrani

Member
Procurement Review Committee
BPPRA

Engr. Junaid Shah

30/03/26

Member
Procurement Review Committee
BPPRA

Iftikhar Ahmed Mir

Member
Procurement Review Committee
BPPRA

30/3/2026

30.03.26

Syed Muheebullah, Advocate

Member
Procurement Review Committee
BPPRA